

an act of parliament, and therefore [under the old Registry Acts,] if A., on purchasing a ship, took the transfer in the name of B., the complete ownership, both legal and equitable, was in B. (a). In order to enforce the navigation laws, and secure to British subjects the exclusive enjoyment of British privileges, the Registry Acts required an exact history to be kept of every ship, how far throughout her existence she had been British built and British owned, and if implied trusts were permitted the whole intent of the legislature might have been indirectly defeated (b).

Exceptions to the rule. — However, in certain cases [even under the old law a person might have been] the registered owner and still have been a trustee. When, for instance, one of the members of a firm had a ship registered in his name, it was held by him in trust for the firm including the other partners (c). And when a ship was registered by mistake in the name of a person who was not the owner of it, and where the person who transferred it to him had no interest in it, the transferee did not acquire such a title to the ship as to deprive the rightful owner of it (d). [And in delivering judgment in the case of *Holderness v. Lamport*, Sir J. Romilly, M.R., observed,] “If letters of administration were obtained to the estate of a ship-owner, and the administrator transferred the ship into his own name, and afterwards a will was discovered and probate granted to the executor, could it be contended that the executor was precluded from obtaining the ship, because another person had, *bonâ fide* but by mistake, been registered as the owner?” (e).

[Recent statutes.] — The law has, however, been lately modified so as to allow of a beneficial interest in a ship in persons not appearing on the register, and under the Acts

that the personal representatives of the *cestuis que trust*, became entitled on their deaths to the property, either as special occupants, as indicated in the grant, or under the statute in default of a special occupant; *Croker v. Brady*, 4 L. R. Ir. 653; overruling *S. C.* 4 L. R. Ir. 61.]

(a) *Ex parte Yallop*, 15 Ves. 60;

Ex parte Houghton, 17 Ves. 251; *Camden v. Anderson*, 5 T. R. 709.

(b) See *Ex parte Yallop*, 15 Ves. 66, 69.

(c) *Holderness v. Lamport*, 29 Beav. 129, *per M. R.*

(d) *Holderness v. Lamport*, 29 Beav. 129.

(e) *Ib.*